

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE CORP.
(TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG
KONG) LTD., AND EVERGREEN MARINE (SINGAPORE)
PTE. LTD., *Respondents*.

DOCKET NO. 24-12

MOTION FOR PARTIAL DISMISSAL OF THE COMPLAINT

Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively “Respondents”) hereby move, pursuant to Rules 12(b)(1) and 12(b)(6) of the Federal Rules of Civil Procedures (the “Federal Rules”), made applicable to this proceeding by the Rule 12 of the Federal Maritime Commission’s Rules of Practice and Procedure (the “FMC Rules”)(46 C.F.R. 502.12), to dismiss those portions of the Complaint which are based upon alleged breaches of the service contracts entered into between the parties. Respondents are not moving to dismiss that portion of the complaint asserting claims for allegedly improper demurrage and detention charges.

Accordingly, Respondents hereby move to dismiss: (i) Count I of the Complaint, which alleges that Respondents’ failure to meet service contract commitments violated 46 U.S.C. 41102(c); (ii) Count III of the Complaint, which alleges that Respondents’ failure to meet service contract commitments violated 46 U.S.C. 41104(a)(2)(A); and (iii) Count IV of the Complaint, to

the extent it alleges that Respondents' failure to meet service contract commitments violated 46 U.S.C. 41104(a)(10).

Respondents respectfully refer to their Memorandum of Law in Support of Respondents' Motion for Partial Dismissal of the Complaint for a detailed explanation and analysis of the reasons Respondents' motion for partial dismissal should be granted.

WHEREFORE, Respondents respectfully request that Count I, Count III and that portion of Count IV that is based upon Respondents' alleged breaches of the service contracts be dismissed.

Dated: March 18, 2024

Respectfully submitted,

BETANCOURT, GRECO & EVANS LLC

/s/ John Greco

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*Counsel for Respondents, Evergreen Line Joint
Service Agreement (FMC # 011982) et al.*

CERTIFICATE OF SERVICE

I certify, under penalty of perjury, that on this 18th day of March, 2024 the foregoing Motion for Partial Dismissal of the Complaint was served via electronic mail on:

Karl C. Huth
Matthew J. Reynolds
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/s/ John Greco
John Greco